

Opinion of the Court

Klein involved Civil War legislation providing that persons whose property had been seized and sold in wartime could recover the proceeds of the sale in the Court of Claims upon proof that they had “never given any aid or comfort to the present rebellion.” Ch. 120, § 3, 12 Stat. 820; see *Klein*, 13 Wall., at 139. In 1863, President Lincoln pardoned “persons who . . . participated in the . . . rebellion” if they swore an oath of loyalty to the United States. Presidential Proclamation No. 11, 13 Stat. 737. One of the persons so pardoned was a southerner named Wilson, whose cotton had been seized and sold by Government agents. Klein was the administrator of Wilson’s estate. 13 Wall., at 132. In *United States v. Padelford*, 9 Wall. 531, 543 (1870), this Court held that the recipient of a Presidential pardon must be treated as loyal, *i. e.*, the pardon operated as “a complete substitute for proof that [the recipient] gave no aid or comfort to the rebellion.” Thereafter, Klein prevailed in an action in the Court of Claims, yielding an award of \$125,300 for Wilson’s cotton. 13 Wall., at 132.

During the pendency of an appeal to this Court from the Court of Claims judgment in *Klein*, Congress enacted a statute providing that no pardon should be admissible as proof of loyalty. Moreover, acceptance of a pardon without disclaiming participation in the rebellion would serve as conclusive evidence of disloyalty. The statute directed the Court of Claims and the Supreme Court to dismiss for want of jurisdiction any claim based on a pardon. 16 Stat. 235; R. Fallon, J. Manning, D. Meltzer, & D. Shapiro, *Hart and Wechsler’s The Federal Courts and the Federal System* 323, n. 29 (7th ed. 2015) (Hart and Wechsler). Affirming the judgment of the Court of Claims, this Court held that Congress had no authority to “impai[r] the effect of a pardon,” for the Constitution entrusted the pardon power “[t]o the executive alone.” *Klein*, 13 Wall., at 147. The Legislature, the Court stated, “cannot change the effect of . . . a pardon any more than the executive can change a law.” *Id.*, at 148. Lacking